

24STCV18603 24STCV18603

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-06-24

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Case Number: 24STCV18603 Hearing Date: June 24, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

LATOYA VICKERS

vs.

MICHELIN et al.

Case

No.: 24STCV18603

Hearing Date: June 24, 2026

Plaintiff's motion to quash subpoenas

for private medical records is DENIED.

On 7/25/2024,

Plaintiff Latoya Vickers (Plaintiff) filed suit against Michelin, Michelin

North America, Inc., and Alonso Tiscareno, alleging: (1) violation of Labor

Code section 1102.5; (2) violation of Equal Pay Act; (3) failure to prevent

gender and racial discrimination; (4) declaratory judgment; (5) wrongful

termination; and (6) intentional infliction of emotional distress.

On

3/23/2026, Plaintiff moved to quash subpoenas for private medical records.

Discussion

Plaintiff

moves for an order quashing subpoenas served on:

1.

Custodian of Records for: Marian D.

Spivey, LCSW;

2.

Custodian of. Records for: Kiaundra

Jackson, LMFT;

3.

Custodian of Records for: Raafat N.

Mattar, M.O; and

4.

Custodian of Records for: Nhordia

Torres, CNP.

Plaintiff

argues that the subpoenas are inappropriate as they seek her private medical records, and this is not a disability discrimination case.

However,

Plaintiff alleges “severe and profound pain and emotional distress, anxiety, depression, headaches, tension, and other physical ailments, as well as medical expenses, expenses for psychological counseling and treatment, and past and future lost wages and benefits.” (Complaint ¶ 39.)

As such,

Plaintiff has put her physical and mental health at issue, and thus has waived her constitutional right of privacy to the extent necessary for fair adjudication of the claims.

Based on the

foregoing, Plaintiff’s motion to quash subpoenas for private medical records is denied.

It is so ordered.

Dated: June

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.